

OFFICE OF THE SECRETARY

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September 4, 2020

The Honorable W. Robert Fawke
Judge of the Superior Court
County of San Bernardino
247 West Third Street
San Bernardino, CA 92415

Re: Alberto Jesus Barreto III
CDCR No: T42556
Case No: FSB024827
Date of Sentence: December 19, 2001

Dear Honorable W. Robert Fawke:

The purpose of this letter is to provide the court with the authority to resentence inmate Alberto Barreto, T42556 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

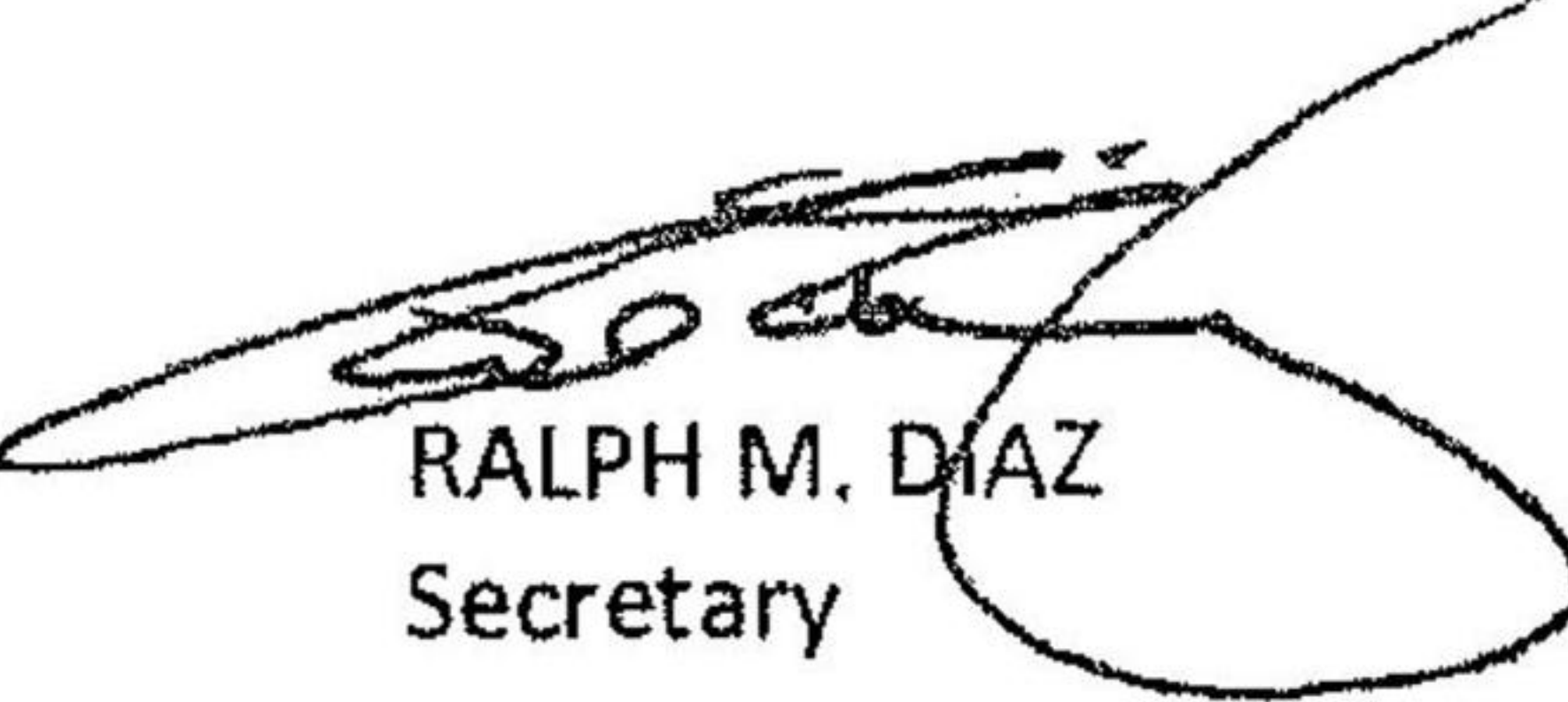
As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Barreto has received three Rules Violation Reports since being received to the CDCR on January 29, 2002, however, he has remained disciplinary free since August of 2014. Inmate Barreto is currently assigned as a Clerk, and his supervisor notes he tries hard and has a positive attitude. Inmate Barreto also participates in Serenity Yoga, Celebrate Recovery, and the Youth Offender Program. He has received numerous Certificates and Laudatory Chronos from group sponsors and staff acknowledging his commitment and dedication to these Self-Awareness, and Improvement Groups. Staff stated they have no issues with inmate Barreto and that he is a programmer.

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Having reviewed the enclosed documentation it appears that inmate Barreto's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable John P. Vander Feer, Presiding Judge
San Bernardino County District Attorney's Office
San Bernardino County Public Defender's Office